

25SMCV06490 25SMCV06490

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-20

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Case Number: 25SMCV06490 Hearing Date: July 20, 2026 Dept: P

Tentative

Ruling

A to A

Properties LLC v. CMJ Recovery NV, LLC, et al., Case No. 25SMCV06490

Plaintiff's

Motion for Leave to Amend

Hearing

Date: July 20, 2026

Motion

for Leave to Amend

Plaintiff

sues defendants CMJ Recovery NV, LLC; Joel Strulovics; and CMJ Healthcare Holdings, LLC for breach of guaranty, fraud, and negligent misrepresentation related to a guaranty defendants executed for Plaintiff's tenants' lease obligations at 21965 Saddle Peak Road, Topanga, CA.

On June

22, 2026, Plaintiff filed a motion for leave to amend, adding claims for voidable transfer, conspiracy to commit voidable transfer, declaratory relief, and intentional interference with contract, and adding Malibu Recovery Center LLC, Aliya Health Group, LLC (Florida); Aliya Health Group LLC (Delaware); and Marc Beck off as defendants.

On July 7,
2026, Defendants filed a notice of non-opposition to this motion.

The trial

court has discretion to allow amendments to pleadings in the furtherance of justice. (Code Civ. Proc. § 473, subd. (a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc. § 576.) “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].) “An application to amend a pleading is addressed to the trial judge’s sound discretion.” (Ibid. [citations omitted].) A judge may deny a motion for leave to amend where a moving party has been dilatory in seeking leave to amend and such delay has prejudiced the opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490 (“Hirsa”).) “It is difficult to understand how [a named defendant] can be prejudiced by amendment to add an additional theory of liability against it.” (Ibid.)

“[I]t is

an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 (“Kittredge”).) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 (“Solit”).)

A motion

for leave to amend must include a separate declaration specifying: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, Rule 3.1324(b).) A motion for leave to amend must “[i]nclude a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments.” (Cal. Rules of Court, Rule 3.1324(a)(1).) Moreover, a motion to amend must “[s]tate what allegations in the previous pleading are proposed” to be deleted or added, if any, and must set forth the page, paragraph, and line number of such allegations. (Cal. Rules of Court, Rule 3.1324(a)(2)-(3).)

Plaintiff

argues that this motion arises from discovery responses showing that the debtor defendants diverted funds to affiliated organizations and individuals, who are named as defendants in the proposed amended complaint. (Motion for Leave to Amend, p. 6.)

Following

a review of Plaintiff's documents, the Court finds that the Delshad Declaration and proposed amended complaint satisfies the California Rules of Court and shows that Plaintiff moved promptly for leave to amend. Absent opposition, the Court also finds that Defendants will not be prejudiced by the amendment.

Plaintiff's

Motion for Leave to Amend is GRANTED.